

September 21, 2026  
Dept. 9  
Probate Tentative Rulings

|                            |          |                                                 |
|----------------------------|----------|-------------------------------------------------|
| 2.                         | 24PR0336 | CONSERVATORSHIP OF BARBARA JEAN YORK-NORDERHAUG |
| MOTION FOR RECONSIDERATION |          |                                                 |

Petitioner, Donna Lee Abreu ("Petitioner") moves this Court to reconsider its order granting Respondents', Mary Bond and Thomas Bond ("Respondents"), motion for judgment pursuant to Code of Civil Procedure § 631.8 entered on July 1, 2026. An Opposition was filed by Respondents on August 11, 2026. Petitioner's Reply was filed September 8, 2026.

On September 1, 2026, Petitioner filed a Notice of Appeal with the Third District Court of Appeal regarding the judgment entered on July 1, 2026.

Except as provided in Sections 917.1 to 917.10, inclusive, and in Section 116.810, the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order. Code of Civil Procedure § 916(a).

The stay under section 916(a) applies to any "trial court proceeding [that] directly or indirectly seek to 'enforce, vacate or modify [the] appealed judgment or order.'" (*Varian, supra*, 35 Cal.4th at p. 189, 25 Cal.Rptr.3d 298, 106 P.3d 958.) *Jack v. Ring LLC* (2023) 91 Cal.App.5th 1186, 1211 [309 Cal.Rptr.3d 130, 150] (finding the trial court did not err in determining it lacked jurisdiction to decide Defendant's motion for reconsideration because the motion sought to vacate and modify the order being appealed).

The Court finds that as Petitioner has filed a Notice of Appeal regarding the underlying judgment, the Court lacks jurisdiction to hear Petitioner's motion. Petitioner's Motion for Reconsideration is vacated and taken off calendar.

**TENTATIVE RULING #2:**

**PETITIONER'S MOTION FOR RECONSIDERATION IS VACATED AND TAKEN OFF CALENDAR.**